UNITED STATES BANKRUPTCY COURT
DISTRICT OF SOUTH DAKOTA

In re:	)	Bankr. No. 14-10006
	)	Chapter 7
DENNIS LANE RICHARDS SSN xxx-xx-7204	)	
and	)	
BETTY JANET RICHARDS SSN xxx-xx-9865	)	
Debtors.	)	
	)	COMPLAINT
	)	
	)	Adv. No. ____
DENNIS LAND RICHARDS and BETTY JANET RICHARDS,	)	
Plaintiffs,	)	
vs	)	
MASON COMPANIES, INC., d/b/a STONEBERRY; COLONY BRANDS, INC., d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony;	)	
Defendants.	)	

COMES, NOW, the above-named Debtors, Dennis Lane Richards and Betty Janet Richards, by and through their attorney, David J. Fransen, states and alleges as follows:

1. This is a core proceeding under Federal Bankruptcy Rule 7001(6) to determine the dischargability of debts named herein.

2. That the above-named Debtors filed for relief under Chapter 7 Bankruptcy pursuant to a Petition filed with this Court on or about January 17, 2014, in Case Number 14-10006.

3. That the Debtors above-named are represented by David J. Fransen of Fransen Law Office, (605) 226-8234, P.O. 1433, Aberdeen, South Dakota, 57401. These Debtors' Chapter 7 No Asset Case was Discharged on April 22, 2014.

4. The Debtors, in completing their Bankruptcy Schedules and Statements of Financial Affairs inadvertently failed to include Mason Companies, Inc. (d/b/a Stoneberry), c/o Registered Agent Daniel J. Hunt, 1251 First Avenue, Chippewa Falls, WI 54729; and Colony Brands, Inc. (d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony), c/o Registered Agent Jeffrey R. Surlas, 1112 7th Avenue, Monroe, WI 53566-1364 as Creditors in this Bankruptcy proceeding.

5. Prior to the time that the Debtors filed their Petition in Chapter 7 Bankruptcy, Debtors owed Mason Companies, Inc., d/b/a Stoneberry the sum of $296.30.

6. The $296.30 owed Mason Companies, Inc., d/b/a Stoneberry represents a debt incurred prior to the date of the filing of the Petition in Chapter 7 Bankruptcy.

7. Further, the Debtors inadvertently failed to schedule Colony Brands, Inc. (d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony) as a Creditor even though these creditors are owed the sum of $357.53 for Ginny's, $106.14 for Midnight Velvet, and $155.90 for The Swiss Colony, for a total of $619.57.

8. The balance owed Colony Brands, Inc. (d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony) in the amount of $619.57 represents a debt incurred prior to the date of the filing of the Debtor's Petition in Chapter 7 Bankruptcy.

9. Because the Debtor's Chapter 7 case was a No Asset Case and was discharged on April 22, 2014, no Proof of Claims were filed, nor did any Creditors receive any distribution.

10. Because no Creditors received any distribution, both the Mason Companies, Inc. (d/b/a Stoneberry) debt and the Colony Brands, Inc. (d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony) debts are discharged as Creditors pursuant to 11 U.S.C. 523(a)(3)(B).

WHEREFORE, the Debtors assert that this matter arises under Federal Bankruptcy Rule 7001(6), and that this Court has jurisdiction pursuant to the Bankruptcy Amendments and the Federal Judgeship Act of 1984, as amended.

WHEREFORE, these Debtors respectfully request that the Court issue its Order determining that the indebtedness owed Mason Companies, Inc. (d/b/a Stoneberry) debt and the Colony Brands, Inc. (d/b/a Ginny's, d/b/a Midnight Velvet, and d/b/a The Swiss Colony) debts be discharged pursuant to 11 U.S.C. § 523(a)(3)(B).

Dated this 4th day of May, 2014.

/s/ David J. Fransen
David J. Fransen, Esq.
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STATE OF SOUTH DAKOTA)
)SS VERIFICATION
COUNTY OF CODINGTON)

The undersigned having been first duly sworn upon his oath states that he is the Debtor in the above-entitled matter and the facts therefore are true to the best of his knowledge, information and belief.

/s/ Dennis Lane Richards
Dennis Lane Richards

Subscribed and sworn to before me this 4th day of May, 2014.

/s/ David J. Fransen
Notary Public
My Commission Expires: 10/16/2016

(SEAL)

STATE OF SOUTH DAKOTA)
)SS VERIFICATION
COUNTY OF CODINGTON)

The undersigned having been first duly sworn upon her oath states that she is the Debtor in the above-entitled matter and the facts therefore are true to the best of her knowledge, information and belief.

/s/ Betty Janet Richards
Betty Janet Richards

Subscribed and sworn to before me this 4th day of May, 2014.

/s/ David J. Fransen
Notary Public
My Commission Expires: 10/16/2016

(SEAL)